JANE CHIPITI
versus
TATENDA DEMBAREMBA(In his capacity as the executor dative of the estate of the late The late Johannes Dembaremba DR 1548/22)
and
CHENAI TEPALEPA
and
THE MASTER OF HIGH COURT
and
THE REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 18 March 2025 & 5 March 2026

Civil Trial – Revocation of a donation

L Rufu, for the Plaintiff
S P Mamimine, for the 1st and 2nd Defendants
No Appearance for the 3rd and 4th Defendants

MAXWELL J:

The plaintiff filed summons seeking confirmation of the revocation of a donation in respect of immovable property known as Stand Number 3762 Dzivarasekwa 4, Harare. In her declaration, the plaintiff averred that she was blessed with one child, the late Johannes Dembaremba, whom she raised as a single mother following the death of his father around 1978, when the late Johannes was still young. The plaintiff stated that she worked as a housemaid in the low-density suburbs for the greater part of her life. In 1989, her employer assisted her in acquiring the said property. In 1994, the plaintiff donated the property to her only son, the late Johannes. She asserted that the donation was made to enable the late Johannes, who was then employed by the City of Harare, to secure a loan for the purpose of completing the development of the house, which at that time consisted of only three partially constructed rooms.

The plaintiff further averred that the late Johannes was developing the house on her behalf. The donation was made on the express understanding that, notwithstanding the registration of the property in the late Johannes's name, the plaintiff would retain rights of

occupation and control over the property until her death. The transfer of Stand Number 3762, Dzivarasekwa Township, was duly effected in 1995 under deed of transfer number 04697/95. The plaintiff contended that, despite this arrangement, notwithstanding her ill health, having been diagnosed with diabetes and hypertension, the late Johannes and the second defendant exhibited gross ingratitude. She alleged that they failed to provide her with care, destroyed her property, denied her access to the property, and took her to false prophets who accused her of being a witch and other degrading acts. For those reasons, the plaintiff seeks to revoke the donation on account of gross ingratitude.

The first and second defendants entered an appearance to defend and filed their plea. They denied knowledge of the plaintiff's alleged employment history as a domestic worker. They disputed that the Plaintiff bought the property in question. They further averred that Deed of Transfer number 4697/95 reflects that the City of Harare sold the property in question to the late Johannes. They contended that the said deed of transfer evidences a lawful sale transaction between the City of Harare and the late Johannes, and not a donation from the plaintiff to her son. The defendants pointed out that the issue of *donatio inter vivos* does not arise in the present matter. They further contended that the excusable ground of ingratitude, upon which the plaintiff seeks to rely, is inapplicable in the circumstances.

The plaintiff filed her replication to the defendants' plea. She insisted that the defendants are aware of the plaintiff's work history as a maid. She further contended that the first and second defendants are also privy to the fact that she donated the immovable property to the late Johannes. She asserted that the history of the property in question points to a donation to the late Johannes by the plaintiff.

A pre-trial conference was convened. The parties were unable to reach an amicable settlement of the dispute. The parties agreed to refer the following issues to trial.

1. Whether or not the plaintiff donated Stand 3762 Dzivarasekwa 4, Harare, to her late son, the late Johannes Dembaremba.
2. If so, whether or not the plaintiff is entitled to the relief she is seeking against the defendants.

TRIAL

The plaintiff adduced evidence through three witnesses. She was the first to testify. In her testimony, she stated that she was blessed with one child, the late Johannes. She averred that the late Johannes's father predeceased him in or about 1978, when the late Johannes was

in grade two. The plaintiff further testified that the first defendant is her eldest grandson and the executor dative of the late Johannes's estate, while the second defendant is her daughter-in-law and the surviving spouse of the late Johannes. The plaintiff asserted that she raised the late Johannes as a single mother, being employed as a domestic worker by one Mr. Baines in Belvedere, Harare. During this period, she was assisted by Mr. Baines to acquire immovable property known as Stand Number 3762, Dzivarasekwa 4, Harare. She testified that in 1984, one Casmale Nyabvure entered into an agreement of sale with the Municipality of Harare (now the City of Harare) for the said stand. A copy of the agreement of sale between Casmale Nyabvure and the Municipality of Harare was tendered as an exhibit. In 1989, with the approval of the then Harare Municipality, she entered into a Memorandum of Assignment with Casmale Nyabvure wherein she took over his rights and obligations in the property.

She further averred that in 1994, on the advice of one Cephas Dembaremba (Cephas), a brother to her late husband, and his wife Constance Zvokunzwa Gororo (Constance), she donated Stand 3762, Dzivarasekwa, to her son, the late Johannes. She explained that the second defendant had previously worked as a maid in Belvedere, where the plaintiff herself was employed. As a result, second defendant came to know the late Johannes and they subsequently married. The plaintiff testified that when Casmale Nyabvure assigned her rights, title, and interest in Stand 3762 Dzivarasekwa in 1989, the property comprised of three rooms and a slab. She stated that she donated the property to the late Johannes, who was then employed by the Harare Municipality, to enable him to secure a loan to complete the house on her behalf. She emphasized that the donation was made on the express understanding that, notwithstanding registration of the property in the late Johannes's name, she would retain undisturbed rights of occupation until her death. A copy of the Memorandum of Agreement of Assignment executed between her and the late Johannes was produced in evidence.

The plaintiff further testified that the transfer of the property was done in September 1995 under Deed of Transfer No. 04697/95, a copy of which was tendered. She averred that in the late 1990s, after the transfer, she expelled the late Johannes and his family from the property, but permitted their return two years later after the late Johannes had lost his employment. She alleged that the second defendant has since exhibited ingratitude by failing to provide for her, destroying her property, denying her access to the premises and inviting so-called prophets who accused her of witchcraft and other misconduct. The plaintiff further testified that in 2021, she revoked the donation made to the late Johannes. She stated that the late Johannes, who was ill at the time, apologized and undertook to reverse the transaction

once he recovered. The plaintiff stated that her claim before the Honourable Court is for confirmation of the revocation of the donation of Stand 3762 Dzivarasekwa, Harare.

Constance also gave evidence for the plaintiff. She testified that the Plaintiff had been employed by Mr. Baines, who, before relocating to his country of origin, purchased a stand in Dzivarasekwa for her. Constance stated that the plaintiff informed her that the property comprised a three-roomed house with a slab intended for extension into seven rooms. She pointed out that the plaintiff resided at the servant's quarters at her workplace while the late Johannes occupied the house in question. Her husband suggested that the late Johannes gets a loan from his workplace to complete the house. However, the late Johannes could not obtain a mortgage bond without a title deed in his name. Plaintiff was hesitant to put the property in the late Johannes' name.

Constance confirmed that she and her husband convinced the Plaintiff to put the house in her son's name so that he would be able to get a loan from his workplace to complete it. As a result, the plaintiff donated the property to him. She stated that thereafter she witnessed ingratitude on the part of the late Johannes and his wife, the second defendant. She further stated that whenever the plaintiff visited the property, disputes would arise between her and the late Johannes, together with his wife, the second defendant. On one occasion, the late Johannes and his wife were expelled from the property following disputes with the plaintiff. She testified that her husband advised her that the late Johannes was neglecting his duty to care for his mother and further that he advised Plaintiff not to permit the late Johannes and his wife to return to the property. She also averred that the second defendant was aware that the plaintiff had worked as a maid before her marriage to the late Johannes.

Augustine Muvishi gave evidence for the plaintiff. He testified that he was informed by his aunt that the plaintiff had purchased the property in question. He candidly admitted that he was not present when the alleged agreement of sale was concluded and did not witness any transaction.

Joshua Chipiti Zengenene also testified on behalf of the plaintiff. He stated that the plaintiff had informed him that she had purchased the property. He further testified that, in his observation, the plaintiff and her son, the late Johannes, enjoyed a good relationship, and she had never complained to him of any ill-treatment. He did not comment on the issue of the ill-treatment that the plaintiff testified to. He further stated that he had not seen the agreement of sale purportedly entered into between the plaintiff and her deceased son. He explained that

he became aware of the dispute only when he was called to testify in court, and that the plaintiff disclosed its existence to him.

After the plaintiff had closed her case, the first and second defendants applied for absolution from the instance. However, the application for absolution from the instance was dismissed and the matter proceeded to the defendants' case.

The first and secomnd defendants led evidence of one witness, who is the second defendant. She testified as follows. She stated that she received summons from the plaintiff, which required her to vacate the house at number 3762 Dzivararsekwa 4, Harare. She averred that she was not aware of any donation of the said house by the plaintiff to her late husband, the late Johannes. She pointed out that she was aware of a loan advanced to her husband, which was used to construct the house.

It was her evidence that the plaintiff never donated the house to the late Johannes, but rather that the house belonged to her late husband. She further denied ever neglecting the plaintiff. She stated that her last communication with the plaintiff was four years ago, when she was served with a summons. Under cross-examination, the second defendant admitted that she had once worked as a maid and that the plaintiff had previously resided at the immovable property in question. She conceded that she and the late Johannes once stayed in Derere Street, but were later called back by the plaintiff to reside at the disputed property. She also confirmed that the plaintiff still retains belongings in one of the rooms of the house.

ANALYSIS

The first issue to be determined is whether the Plaintiff acquired and donated the property in question to her late son, Johannes. In their plea, first and second Defendants categorically stated that;;

> "2.1. The Defendants are not privy that the Plaintiff worked as a maid save to state that the Plaintiff never acquired Stand 3762 Dzivarasekwa Township. The property was bought by 2nd Defendant's husband sometime in 1995 from City of Harare."

And further that;

> "4.1. This is denied and it makes no sense at all. The Deed of Transfer does not say the Plaintiff donated the property to the Late Johannes Dembaremba but rather point to the fact that City of Harare legally sold the property to the deceased."

The exhibits produced show that the property in question was initially sold to one C. Nyabvure and the agreement of sale was signed on the 8th of November 1984. The purchase

price was $410.00. On the 10th of February 1989, C. Nyabvure's rights and obligations were assigned to the Plaintiff through an Agreement of Assignment. The rights and obligations were assigned to the Plaintiff for the sum of $5400.00. The Municipality of Harare's approval of the assignment was signified by the signature of the Director of Housing and Community Services. On the 14th of September 1994, Plaintiff assigned her rights and obligations in the property to her son, the late Johannes. Where the cost of the assignment was to be indicated, the words " DONATION TO SON" were written. On the same date, the Acting Director of Housing and Community Services wrote to the late Johannes. The letter stated

> " **RE: STAND 3762 DZIVARESEKWA**
>
> I refer to your recent visit to these offices.
>
> Attached hereto find the Memorandum of Agreement of Assignment in respect of the above property. Please take this document and your National Registration Card to the District Officer so that a new card in your name can be issued to you."
>
> This letter was copied to "Miss J. Chipiti, 3762-4th Street, Dzivaraesekwa- for your information."

A similarly worded letter had been written to the Plaintiff on the 14th of February 1989 following her agreement with C. Nyabvure. It is clear from the documents that Plaintiff acquired the property from C. Nyabvure with the approval of the municipality. She subsequently donated it to her son, again with the approval of the municipality. First and second Defendants wanted to capitalise on the fact that the Deed of Transfer states that the property was sold to the late Johannes Dembaremba. The Deed of Transfer was signed on the 12th of July 1995. It states the purchase price as $410.00. Considering that the seller approved a transaction that valued the property in 1989 at $5400.00, it would be surprising for the same property to be sold for a lesser value in 1995. In my view, the Deed of Transfer reflects the initial cost that was paid by C. Nyabvure. There is no evidence that the late Johannes paid the purchase price. The letter dated 14 September 1994, which shows that the late Johannes was issued with a card in his name following the signing of a Memorandum of Agreement of Assignment was not controverted or discredited. I am persuaded that the Plaintiff acquired the property from C. Nyabvure with the approval of the Municipality of Harare and subsequently donated it to her son, the late Johannes, again with the approval of the same municipality. This position is supported by the evidence of the Plaintiff and her witnesses.

The second issue is whether the Applicant can revoke the donation she made. Although a donation is generally irrevocable once perfected, it may be revoked on recognised grounds such as ingratitude. This principle was captured in *Mukudu* v *Mukudu &Ors* HH 228/17 wherein TSANGA J stated that:

> "Whilst generally a donation is irrevocable, there are exceptions to this general rule particularly where a donee has shown ingratitude. Under Roman Law, the Institutes of Justinian refers to ingratitude as a ground for revocation in Inst 2 7 2:
>
> > 'It is to be observed, however, that even where gifts have been completely executed we have by our constitution under certain circumstances enabled donors to revoke them, but only on proof of ingratitude on the part of the recipient of the bounty; the aim of this reservation being to protect persons, who have given their property to others, from suffering at the hands of these, latter injury or loss in any of the modes detailed in our constitution-trans 1 Moyle The Institutes of Justinian (1906).
> >
> > Examples of ingratitude include personal violence against the donor; treacherous deeds causing the donor great pecuniary losses which extensively diminished his estate; exposure to danger threatening the donor's life, and a breach of written or oral undertakings of the donee. Examining traditional services of revocation of a donation under Roman and Dutch Law Susan Scott for example summarizes the modern position as follows
> >
> > > 'In modern terms, the position can be stated as follows; Ingratitude is a ground for revocation of donations. The examples given in the Code and explained by Roman- Dutch authors indicate that the grounds of ingratitude are serious infringements of a person's personal rights, personality rights, and property rights. It is also clear that in all these situations the donee must have acted with intent."
> >
> > See also the cases of *Malaba* v *Malaba* HB 14/05 and *Taylor* v *Taylor* SC 70/07 in which a donation was declared revocable on the ground of ingratitude."

The *viva voce* evidence of the plaintiff and the witnesses point to the fact that the plaintiff herself acquired the stand. It is not in dispute that the transfer of the property was done under Deed of Transfer Number 04697/95. The plaintiff explained that the donation was made solely to enable the late Johannes to secure a bond for the completion of the house, but with the express understanding that she would retain undisturbed rights of occupation until her death. The plaintiff testified that the late Johannes and the second defendant failed to support her, denied her access to the property, and engaged in conduct amounting to ingratitude. She further stated that she revoked the donation in 2021, and the late Johannes acknowledged the revocation.

The supporting witnesses gave varying degrees of corroboration. Constance confirmed that the plaintiff acquired the property and that disputes arose between the plaintiff and the late Johannes's family. Augustine Muvishi and Joshua Chipiti Zengenene, however, admitted that they had no direct knowledge of the transactions and relied solely on what they had been told by the plaintiff. Their evidence is therefore of limited probative value. The court must determine whether the plaintiff's revocation of the donation is legally valid. In terms of the law of donation, revocation is permissible where the donee exhibits ingratitude or fails to comply with conditions attached to the donation. The plaintiff's testimony, supported in part by Constance, establishes that the late Johannes and the second defendant engaged in conduct that the plaintiff perceived as ingratitude, including neglect and denial of access.

The plaintiff produced a Memorandum of Agreement of Assignment executed between herself and the late Johannes. She asserted that the donation was not absolute but subject to her continued rights of occupation. The Memorandum of Agreement of Assignment clearly recorded that it was a donation to the son. The court accepts this documentary evidence as credible and consistent with her testimony.

The plaintiff testified that the late Johannes and the second defendant failed to support her, denied her access to the property, and engaged in disputes that led to their expulsion from the premises. Constance corroborated aspects of this testimony. She confirmed that the late Johannes was advised to obtain a loan to build a house for his mother. Further, after he was married, disputes arose.

The second defendant herself was not a credible witness. In the plea there is an assertion that the Defendants are not privy to the fact that the Plaintiff worked as a maid. However, under cross-examination, the second Defendant conceded that Plaintiff worked as a maid. It was therefore a lie that the Defendants are not privy to the plaintiff working as a maid. In the case of *Manjala v Maphosa* SC 18/2016, the Supreme Court stated that:

> "If a litigant lied in one material respect, the court would be entirely justified in taking the view that he has lied in all other respects and in treating his evidence accordingly. In *Moroney v Moroney* SC 24/13 it was held as follows:
>
> > "I accept that the respondent failed to truthfully and adequately explain the circumstances of how the various amounts that the respondent claimed came from Helena Limited found their way into the Standard Chartered Isle of Man Account. The court ought to have disbelieved him …"

In *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith* HH1311/03 NDOU J at p 7 of the cyclostyled judgment stated as follows:

> "It is trite that if a litigant gives false evidence, his story will be discarded and the same adverse inferences maybe drawn as if he had not given evidence at all- see *Tumahole Bereng v R* [1949] AC 253 and South African Law of Evidence by LH Hoffmann and DT Zeffertt (3ed) at p 472. If a litigant lies about a particular incident the court may infer that there is something about it which he wishes to hide."

The second defendant, under cross examination, confirmed the evidence of the Plaintiff that she once resided at the property in question. She admitted that she had previously stayed in Derere Street, but was later called back by the plaintiff to reside at the disputed property. She confirmed that the plaintiff still has her belongings in one of the rooms of the house. The above admissions, in the court's view, distract from the defendant's assertion that the house exclusively belonged to her late husband. The court is not persuaded by the defendant's denial of donation, as her testimony was largely based on lack of knowledge rather than direct evidence. Her acknowledgement of the plaintiff's continued interest in the property supports the plaintiff's claim of ownership. The mere existence of a title deed in the name of the late Johannes cannot be relied on to say that the property belonged to the late Johannes. The 2nd defendant could not explain how the property was purchased. When she was asked where the late Johannes got the money to acquire a stand soon after finishing school, she could not answer clearly, instead, she murmured. In the case of *CBZ Bank Limited v David Moyo &Another* S-17-18, the court held that;

> "In any event, the registration of transfer in the Deeds Registry or registration of cession at the offices of a local authority or Deeds Registry does not always reflect the true state of affairs. A title deed or registered cession is therefore *prima facie* proof of ownership or cessionary rights which can be successfully challenged."

In light of the foregoing analysis, the court finds that the plaintiff indeed donated the property in question to the late Johannes. The plaintiff was entitled to revoke the donation by reason of ingratitude. The revocation is therefore valid and enforceable.

The first and second defendants raised a number of issues in their closing submissions. Firstly, they criticise the plaintiff for not citing the City of Harare. They cited the following cases, *Rose* v *Arnold& Ors* 1995 (2) ZLR 17 (H); *Indium Investments (Pvt) Ltd* -v- *Kingshaven (Pvt) Ltd&Ors* SC-40-2015, *Hundah* v *Murauro* 1993 (2) ZLR 401 (S), *Gomba v Makwarimba* 1992 (2) ZLR26 (S) and *Pedzisa v Chikonyora* 1992 (2) ZLR 445 (S). These cases are clearly distinguishable from the present case. The common position in most of these cases is that a local authority with a real interest in the property in dispute should be cited in proceedings to resolve the dispute. Most of the cases relate to properties under lease

from the local authority. In *casu*, the property is no longer under lease as the local authority received the value of the property and passed the transfer. In my view, it no longer has a real interest in the property in dispute. The failure to cite the City of Harare, therefore, does not non-suit the Plaintiff.

Secondly, they argued that the donation was not timeously revoked during the lifetime of the deceased. The plaintiff testified that she revoked the donation in 2021, and the late Johannes acknowledged the revocation and undertook to reverse the transaction. Further, Plaintiff's relatives wanted to discuss the issue with the late Johannes but he did not avail himself. The 2nd Defendant testified that she did not know that Plaintiff discussed the issue of the revocation with the late Johannes. She stated that she never witnessed such a discussion. The fact that she did not know or did not witness the discussion does not mean that it did not take place.

Thirdly, they submitted that the right of revocation prescribed after an unexplained delay of approximately 27 years. The reference to 27 years is to the time the donation was made. In my view, prescription starts to run from the time of the ingratitude complained of, which is given as the justification for the revocation of the donation. Plaintiff testified that she experienced the ingratitude over a long period of time and that to the date of the trial the situation had not changed. She testified to having discussed the issue with the late Johannes in 2021. The summons was issued in June 2022. I am not persuaded that prescription arises in the circumstances of this case.

The first and second Defendants also pointed out that the documents relied on by the Plaintiff have alterations which were not authenticated. These are documents bearing signatures of City of Harare officials and therefore in terms of section 12 of the Civil Evidence Act [*Chapter 8:01*], there is a presumption of their validity until proven otherwise. The first and second Defendants had the onus of rebutting the presumption of validity of the documents. That onus was not discharged. The impugned documents proved the acquisition of rights by the Plaintiff, entitling her to the claim before the court. In *Taylor* v *Taylor* HB58/2007, it is stated that a donation can be revocable even after the property donated has been transferred. The holding of a registered title is therefore not a bar to the revocation of a donation.

Accordingly, it is ordered as follows

1. Plaintiff's revocation of her donation of Stand Number 3762 Dzivarasekwa Township, commonly known as Number 3762 Dzivarasekwa 4, Harare held under Deed of Transfer 04697/95 to the late Johannes Dembaremba be and is hereby confirmed.
2. The first defendant be and is hereby ordered to sign all the necessary papers and perform all such acts necessary to effect transfer into the names of the plaintiff within 30days of service of this order upon him, or immediately after being called upon to do so by the conveyancers, failing which, the Sheriff of the High Court be and is hereby authorised to sign such papers and do all such acts in the first defendant's stead.
3. Each party bears its own costs.



Rufu Makoni Legal Practitioners, plaintiff's Legal Practitioners
Sande Legal Practice, first and second defendant's Legal Practitioners